

24VECV06301 24VECV06301

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-06-23

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Case Number: 24VECV06301 Hearing Date: June 23, 2026 Dept: NWI

I.

Background

On December

17, 2024, Plaintiff Delissa Chase ("Plaintiff") filed a complaint against

Defendants Kelli Rust dba Elite Pet Care ("Elite Pet Care"), Katie Rose

("Rose"), and Does 1 to 20 alleging two causes of action: (1) general

negligence; and (2) premises liability.

On May 8,

2025, Plaintiff filed her first amended complaint ("FAC").

On January

27, 2026, Plaintiff filed the instant motion for summary judgment against Elite

Pet Care.

On April

14, 2026, Elite Pet Care filed its opposition.

To date,

Plaintiff has not filed a reply.

II. Discussion

As a preliminary matter, the Court notes that Plaintiff's

motion is predicated upon the Court deeming Elite Pet Care's responses to

Plaintiff's Requests for Admissions as admitted on January 6, 2026. (Motion at

2:9-13.) On April 9, 2026, Elite Pet Care filed a motion to withdraw or amend

its admissions, which the Court granted on May 8, 2026. (See May 8,

2026, Minute Order.)

Based on the foregoing, the Court finds that Plaintiff's

motion for summary judgment is denied as MOOT.

Moving party to give notice.